



DEPARTMENT OF EDUCATION

Colorado State Board of Education

RULES CONCERNING CHARTER SCHOOLS APPLYING FOR FEDERAL AND STATE GRANTS AND PROGRAMS

1 CCR 301-91

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

1.00 Statement of Basis and Purpose.

Revisions to these rules are required by H.B. 13-1219, which revised sections 22-30.5-101, 503, and 507 C.R.S., to allow a charter school or consortium of charter schools to be treated as a local education agency for the purposes of applying for and determining eligibility for a non-formulaic, competitive grant or program and to allow the charter school institute to act as the fiscal manager for the grant or program. These rules are applicable to state administered non-formulaic, competitive grants or programs of state or federal funds.

The statutory basis for these rules is found in section 22-2-107 (1) (c), C.R.S., outlining state board duties and in section 22-30.5-503, C.R.S., which requires the state board of education to promulgate rules to establish processes, guidelines, and eligibility for a single school or consortium of schools to apply for non-formulaic, competitive grants and programs.

2.00 Definitions.

- 2.01 Charter School means a public school that enters into a charter contract pursuant to the provisions of part 1 of article 30.5 of title 22, C.R.S., or an institute charter school authorized pursuant to part 5 of article 30.5 of title 22, C.R.S.
- 2.02 Charter School Institute or CSI means the independent agency in the Colorado Department of Education, established pursuant to section 22-30.5-503, C.R.S.
- 2.03 Local Education Agency or LEA refers to a local school district, the Charter School Institute, or a charter school or consortium of charter schools, for purposes of applying and determining eligibility for a non-formulaic, competitive grant program created by a federal or state statute or program.

3.00 Eligibility Criteria

- 3.01 A Charter School or consortium of Charter Schools may apply for a non-formulaic, competitive grant or program targeted towards either school-level or LEA-level activities if the Charter School or consortium itself meets the specific grant or program application eligibility requirements.
- 3.02 A single Charter School or consortium of Charter Schools shall not be eligible to apply to a grant program created in the federal "Individuals with Disabilities Education Act" 20. U.S.C. sec 1400 et seq. as amended, or in its implementing regulations.

4.00 Grant and Program Application and Administrative Processes

- 4.01 A Charter School that wishes to be treated as a Local Education Agency for eligibility to apply for a non-formulaic, competitive grant or program must designate either its authorizer or CSI to serve as the fiscal manager for the grant or program. A Charter School consortium that wishes to be treated as a Local Education Agency for eligibility to apply for a non-formulaic, competitive grant or program must designate either a lead authorizer or CSI to serve as the fiscal manager for the grant or program.
- 4.02 If a Charter School intends to apply for a grant that the school's authorizing school district is also intending to apply for, the Charter School shall seek to collaborate with the school district in the application and to submit the application jointly. If the Charter School and the school district are unable to agree to collaborate in applying for the grant, the Charter School may apply for the grant independently or in collaboration with other Charter Schools.
- 4.03 A Charter School or consortium of Charter Schools that wishes to have its authorizer or a lead authorizer serve as the fiscal manager for a grant or program application must notify the authorizer in advance of applying for the grant or program. A Charter School or consortium of Charter Schools that wishes to have CSI serve as the fiscal manager for a grant or program application must contact CSI and obtain permission from CSI in advance of applying for the grant or program.
- 4.04 In accordance with any rule established by the Charter School Institute board, a Charter School or consortium of Charter Schools may be required to pay a fee to CSI if CSI is requested to act as the fiscal manager for the Charter School or consortium. The amount of the fee must not exceed the direct costs incurred by the Institute in administering the grant or program.
- 4.05 A Charter School that applies for a grant, independently or as a part of a consortium, pursuant to section 22-30.5-104, C.R.S. shall provide the following to its authorizer:
- 4.05(a) a copy of the grant application at the time the application is submitted to the grant maker;
- 4.05(b) notice that the Charter School did or did not receive the grant moneys; and
- 4.05(c) if the Charter School receives grant moneys, a summary of the grant requirements, a summary of how the Charter School is using the grant moneys, and periodic reports on the Charter School's progress in meeting the goals of the grant as stated in the application.
- 4.06 For any grant or program funds distributed by the Colorado Department of Education, the fiscal manager identified by the Charter School or the consortium of Charter Schools (either a Charter School authorizer or CSI) shall receive the distribution from the department and then provide the Charter School with access to that funding.
- 4.07 If CSI serves as the fiscal manager for a Charter School or consortium of Charter Schools, grant or program funding shall be distributed to the Charter School or consortium by CSI, as dictated by the grant distribution schedule, and if not dictated by the grant distribution schedule, then as agreed to in writing by CSI and the Charter School or consortium.

Editor's Notes

History

Entire rule eff. 01/14/2013.

Entire rule eff. 03/30/2014.